

(49)

Tentative Ruling

Re: **California Fair Plan Association v. Shaver Lake Propane**
Superior Court Case No. 25CECG04660

Hearing Date: July 1, 2026 (Dept. 501)

Motion: Application for Admission of David Dahlmeier to Appear as Counsel for Defendant Shaver Lake *Pro Hac Vice*

Tentative Ruling:

To grant. (Cal. Rules of Court, Rule 9.40(a).

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 06/29/26
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: **Kenneth Paul Atrat v. Rayna Savala**
Superior Court Case No. 24CECG04266

Hearing Date: July 1, 2026 (Dept. 501)

Motion: By defendant, Rayna Savala, to Vacate Dismissal

Tentative Ruling:

To deny defendant, Rayna Savala's motion to vacate dismissal.

Explanation:

Defendant, Rayna Savala ("Savala" or "defendant") files this motion to vacate dismissal, where Savala asks this Court to set aside Plaintiff Kenneth Paul Atrat's ("Atrat" or "plaintiff") voluntary dismissal without prejudice of the entire action and all causes of action. Savala's Motion is based on Code of Civil Procedure, section 473 subdivisions (b) and (d), along with "equitable powers" and due process claims.

Atrat filed this action on October 1, 2024. (Savala Decl., ¶ 2.) Savala filed an Answer to the Complaint on November 13, 2024. (Request for Judicial Notice, Ex. 1.) On July 22, 2025, Savala filed a Cross-Complaint against a third-Party for Elder Abuse. (RJN Ex. 2, the "2025 Cross-Complaint.") The 2025 Cross-Complaint was filed without first obtaining Court approval, the caption identified the Superior Court of Santa Clara, a different county, and was never served on the third-party. (*Id.*) Concurrently with the 2025 Cross-Complaint, Savala filed a declaration regarding striking the Complaint. (RJN Ex. 3, Minute Order Dated January 21, 2026, Denying Motion to Strike.)

On November 13, 2025, Savala sought leave to file an amended Cross-Complaint against the Atrat for defamation, slander, elder abuse/assault, conspire to trespass, and intentional infliction of emotional distress. (RJN Ex. 4, Notice of Motion and Motion for Leave to file Cross-Complaint.) The motion for leave to file Cross-Complaint did not reference or identify the August 2025 Cross-Complaint, and was scheduled to be heard March 5, 2026. (*Id.*)

On February 11, 2026, the Court provided the parties with notice that the 2025 Cross-Complaint against a third-party had been voided. (RJN Ex. 5.)

Atrat promptly submitted his Request for Dismissal (CIV-110), seeking dismissal without prejudice as to the entire action as to all parties and all causes of action. (RJN Ex. 6, Notice of Entry of Dismissal.) The court docket reflects that the Request for Dismissal was served on Defendant on February 12, 2026, both by mail to Defendant at 12937 Road 35, Madera, CA 93636, and electronic filing/service. (*Id.*)

The clerk entered the dismissal on February 13, 2026, served the entry of dismissal on the parties on February 23, 2026, and Atrat served Savala with Notice of Entry of Dismissal (CIV-120) the same day and at the same Madera address of Savala's most recent filing. (*Id.*)

Code of Civil Procedure, section 473 subdivision (b)

Code of Civil Procedure section 473, subdivision (b), provides that a court may relieve a party from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. It must be made within 6 months after the judgment, dismissal, order, or proceeding was taken. Relief may be based either on an "attorney affidavit of fault," in which event, relief is mandatory; or declarations or other evidence showing "mistake, inadvertence, surprise or excusable neglect," in which event relief is discretionary.

With respect to discretionary relief under section 473, subdivision (b), the party moving for relief on the basis of "mistake, inadvertence, surprise, or excusable neglect" must show specific facts demonstrating that one of these conditions was met. (*Hopkins & Carley v. Gens* (2011) 200 Cal.App.4th 1401, 1410.) The burden is on the moving party to show that the neglect was excusable: i.e., that the default could not have been avoided through the exercise of ordinary care. (*Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58.)

Under these circumstances, Code of Civil Procedure section 473, subdivision (b) does not apply. Atrat elected to dismiss his action without prejudice pursuant to Cal. Code of Civil Procedure section 581. (Savala Decl. ¶ 7; RJN Ex. 6.)

Code of Civil Procedure section 581, subdivision (c) provides that "[a] plaintiff may dismiss his or her complaint, or any cause of action asserted in it, in its entirety, or as to any defendant or defendants, with or without prejudice prior to the actual commencement of trial.

Under these circumstances, Atrat had every right to dismiss this case, and there was no mistake or inadvertence at issue. Accordingly, principles of equity do not apply under Code of Civil Procedure section 473, subdivision (b) where Atrat dismissed his action. (Savala's Moving papers, pg. 25:20-21.) Furthermore, Savala's confusion about hearing dates (Savala Moving Papers, pg. 7:2-18) does not apply, as her confusion pertained to the motion to strike, which the court denied on January 21, 2026. (RJN Ex. 3.) That confusion has no bearing on a plaintiff voluntarily dismissing their case.

Code of Civil Procedure, section 473 subdivision (d)

Code of Civil Procedure section 473, subdivision (d) states, "The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order."

